

9	22CV398742	Richard Gardner et al vs Linming Jin et al	Plaintiff's motion for leave to file a first amended complaint is DENIED. The Court continued this motion from July 18 to permit Plaintiff to submit a redlined first amended complaint that showed both Plaintiff's proposed additions and deletions so that at least this portion of Plaintiff's motion would comply with California Rule of Court, Rule 3.1324. Despite this continuance, Plaintiff failed to include deletions that the Court is aware of, once again creating doubt about whether all Plaintiff's proposed changes have been disclosed. Plaintiff also fails to submit a declaration that explains "(2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." For these reasons alone, Plaintiff's motion is properly denied. (<i>Hataishi v. First American Home Buyers Protection Corp.</i> (2014) 223 Cal. App. 4th 1454 (trial court's denial of amendment affirmed where Plaintiff failed to file a noticed motion to amend or make the required evidentiary showing under California Rule of Court, Rule 3.1324.) Plaintiff also substantially delayed bringing this motion without explanation. "A long unexcused delay may be the basis for denying permission to amend pleadings. (<i>Moss Estate Co. v. Adler</i> (1953) <i>supra</i>, 41 Cal.2d 581, 586; <i>Bernstein v. Financial Indem. Co.</i> (1968) 263 Cal.App.2d 324, 328 [69 Cal.Rptr. 543]; <i>Stanley v. Kawakami</i> (1954) 127 Cal.App.2d 277, 279 [273 P.2d 709]), especially where the proposed amendment interjects a new issue (<i>Vogel v. Thrifty Drug Co.</i> (1954) <i>supra</i>, 43 Cal.2d 184, 189; <i>Donahue v. Ziv Television Programs, Inc.</i> (1966) 245 Cal.App.2d 593, 611 [54 Cal.Rptr. 130]), which may require further investigation or discovery procedures (<i>Waxman v. Superior Court</i> (1966) 246 Cal.App.2d 668, 671 [54 Cal.Rptr. 924]; <i>Hayutin v. Weintraub</i> (1962) 207 Cal.App.2d 497, 508 [24 Cal.Rptr. 761])." (<i>Nelson v. Specialty Records, Inc.</i> (1970) 11 Cal. App. 3d 126, 139.) Trial is set for November 18, 2024, after the parties agreed to a continuance, without Plaintiff seeking to amend the complaint at that time. Although, "[i]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case,'" the Court finds this to be such a rare case. (<i>Guidery v. Green</i>, 95 Cal. 630, 633; <i>Marr v. Rhodes</i>, 131 Cal. 267, 270.) Permitting this amendment now, after Plaintiff's delay and failure to timely comply with the rules even after the Court granted a continuance unfairly prejudices the Defendants' ability to timely conduct discovery and prepare for trial, and improperly condones Plaintiff's failure to timely and correctly seek this leave. (See <i>Nelson v. Superior Court</i>, 97 Cal.App.2d 78; <i>Estate of Herbst</i>, 26 Cal.App.2d 249; <i>Norton v. Bassett</i>, 158 Cal. 425, 427.) The motion is accordingly denied. Court to prepare formal order.
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Calendar Line 7**Case Name:** *John Doe R.V. R. v. Robert Crose et.al.***Case No.:** 23CV428303

Before the Court is Defendant County of Santa Clara's demurrer to Plaintiff's complaint. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling.

I. Background

This is a sexual abuse case filed 23 years after the alleged abuse ended. According to the complaint, in January 2000, when Plaintiff was 13 years old, the County took legal custody of him and placed him at a group home operated by Defendant Redwood Trails, Inc. ("Redwood"). (Complaint ¶¶ 22, 26-27, 30.) The County and Redwood assigned Plaintiff to room with an older, larger juvenile offender. (Complaint ¶¶ 35, 40-41, 43.) Plaintiff became the target of the other residents, including his roommate, who "routinely intimidated, hit, and verbally abused" him, and "discouraged [him] from attending Redwood events." (Complaint. ¶¶ 29, 32-33.) Plaintiff told Redwood staff he did not feel safe, the other residents wanted to beat him up, and that his roommate had grabbed his butt. (Complaint ¶ 35.) In February 2000, he spoke to his County social worker, who noted that he appeared extremely guarded and untrusting. Despite that concern, the County social worker did not visit Plaintiff at Redwood again. (Complaint ¶ 36.)

In April 2000, Plaintiff's roommate began to sexually assault him. (Complaint ¶ 43.) Because Plaintiff thought the Redwood staff would not believe him, he did not cry for help. (Complaint ¶¶ 43-46.) The alleged sexual assaults continued several times in April 2000. (Complaint ¶¶ 47-49.) Plaintiff disclosed the assaults to his parents during a family visit. (Complaint ¶¶ 45, 50.) His parents then notified law enforcement, and a criminal investigation and prosecution ensued, during which the perpetrator admitted to sexually assaulting Plaintiff. (Complaint ¶¶ 51-52.) Plaintiff was then moved to a different Redwood facility, but was still forced into multiple direct, face-to-face contacts" with his perpetrator during lunch and at Redwood events. (Complaint ¶¶ 54-55.)

In May 2000 the County placed Plaintiff in a group home operated by Defendant Kings View. (Complaint ¶¶ 58-59.) After two or three months at this home, Plaintiff met an adult female counselor who made sexual advances toward him. (Complaint ¶¶ 61-63.) The Kings View counselor pursued Plaintiff romantically, frequently engaging in sexual banter, then secretive kissing, groping, and